

SENATE BILL 567

By Pody

AN ACT to amend Tennessee Code Annotated, Title 2,
relative to inspection of election documents.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 2-8-108, is amended by adding the following new subsections:

(c) Each county election commission shall make election records available not later than the fifteenth day after election day in an electronic format for a fee of no more than fifty dollars (\$50.00).

(d) Beginning on the first day after the date the final certification of an election is completed, each county election commission shall make available for public inspection election records that are:

(1) Images of voted ballots, if a county maintains images of voted ballots;

or

(2) Cast vote records.

(e) Beginning on the sixty-first day after an election, each county election commission shall make available for public inspection records that are original voted ballots. The coordinator of elections shall adopt procedures to ensure the redaction of any personally identifiable information of the voter contained on a ballot before marking the voted ballot available for public inspection.

(f) A person making a request pursuant to subsections (c)-(e) may observe the scanning and related handling process, but shall not touch or handle a physical ballot.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.